

**CHAPTER iii.**

An Act to confirm a Provisional Order under the A.D. 1924.
Private Legislation Procedure (Scotland) Act
1899 relating to Whitehills Harbour.

[28th March 1924.]

WHEREAS His Majesty's Secretary for Scotland has made the Provisional Order set forth in the schedule hereunto annexed under the provisions of the Private Legislation Procedure (Scotland) Act 1899 and it is requisite that the said Order should be confirmed by Parliament: 62 & 63 Vict
c. 47.

Be it therefore enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows:—

1. The Provisional Order contained in the schedule hereunto annexed shall be and the same is hereby confirmed. Confirma-
tion of
Order in
schedule.

2. This Act may be cited as the Whitehills Harbour Order Confirmation Act 1924. Short title.

A.D. 1924.

SCHEDULE.

WHITEHILLS HARBOUR.

*Provisional Order for increasing certain rates and charges
leviable by the Whitehills Harbour Commissioners and
for authorising the Commissioners to levy new or
substituted rates and charges.*

WHEREAS by the Whitehills Harbour Order 1895 scheduled to and confirmed by the Pier and Harbour Orders Confirmation (No. 2) Act 1895 Session 2 (hereinafter referred to as "the Order of 1895") the Whitehills Harbour Commissioners (hereinafter referred to as "the Commissioners") were constituted and the harbour and works in connection therewith at Whitehills in the county of Banff were vested in the Commissioners and the Commissioners were authorised to construct certain piers or quays therein described and from time to time to improve the harbour and works connected therewith and the entrance channels and waterways of the harbour:

And whereas by the Order of 1895 various powers with reference to the said harbour and works were conferred upon the Commissioners and among other things the Commissioners were authorised to demand recover and receive for the use of the harbour and works and conveniences connected therewith in respect of vessels boats persons animals fish goods and things and of services rendered described in the schedule to the Order of 1895 any sums not exceeding the several rates specified in that schedule:

And whereas the Commissioners have constructed the works authorised by the Order of 1895 and have from time to time improved the harbour and have under consideration the carrying out of further improvements:

And whereas the harbour is much frequented by vessels and in particular by vessels engaged in the fishing trade and it is in the public interest that the harbour and works and the appliances and conveniences

in connection therewith should be maintained in an effective condition: A.D. 1924.

And whereas in view of the present and probable future financial conditions and increases in the cost of materials and labour which have taken place in recent years and the consequent increase in the expenditure involved in maintaining the harbour and the works and appliances in connection therewith and in carrying out improvements in the harbour and the approaches thereto it is necessary that the revenue of the Commissioners should be increased:

And whereas it is expedient that further powers of levying rates should be conferred upon the Commissioners and that certain of the rates authorised by the Order of 1895 should be altered as hereinafter provided:

And whereas the purposes aforesaid cannot be effected without an Order of the Secretary for Scotland confirmed by Parliament under the provisions of the Private Legislation Procedure (Scotland) Act 1899:

Now therefore in pursuance of the powers contained in the last-mentioned Act the Secretary for Scotland orders as follows:—

1. This Order may be cited as the Whitehills Harbour Order 1924 and this Order and the Whitehills Harbour Order 1895 may be cited together as the Whitehills Harbour Orders 1895 and 1924. Short and collective titles.

2. This Order shall commence and have effect from and after the date of the passing of the Act confirming the same which date is in this Order referred to as “the commencement of this Order.” Commencement of Order.

3. In this Order unless the context otherwise requires— Interpretation.

“The Commissioners” means the Whitehills Harbour Commissioners;

“The harbour” means and includes the harbour of Whitehills and the piers quays and works therein as defined in the Order of 1895;

“The Order of 1895” means the Whitehills Harbour Order 1895 scheduled to and confirmed by the Pier and Harbour Orders Confirmation (No. 2) Act 1895 Session 2.

A.D. 1924.
—
New and
substituted
rates.

4.—(1) As from the commencement of this Order the Commissioners may for the use of the harbour and works and conveniences connected therewith demand recover and receive in respect of vessels boats goods and things described in Parts I. and II. of the First Schedule to this Order any sums not exceeding the several rates therein respectively specified and the provisions of the Order of 1895 shall apply and have effect as if the said vessels boats goods and things had been described and the said several rates had been specified in the schedule to the Order of 1895 and had been referred to in and authorised by section 31 (Power to levy rates) of that Order.

(2) The several rates respectively specified in Part I. and Part II. of the First Schedule to this Order may be demanded and shall be recoverable and receivable by the Commissioners in addition to the several rates respectively specified in Part III. and Part IV. of the schedule to the Order of 1895 other than the rates respectively repealed by this Order.

(3) As from the commencement of this Order Part I. and Part II. of the schedule to the Order of 1895 so much of Part III. of that schedule as is set forth in the Second Schedule to this Order and so much of Part IV. of the schedule to the Order of 1895 as relates to harbour lights shall be and the same are respectively hereby repealed.

(4) Nothing in this Order shall prejudice or affect the recovery by the Commissioners of any rates which shall or may have become leviable or receivable by them before the commencement of this Order under the Order of 1895 or the schedule thereto.

Costs of
Order. 5. All costs charges and expenses of and incident to the preparing for obtaining passing and confirming of this Order or otherwise incurred in reference thereto shall be paid by the Commissioners and if paid out of borrowed moneys any loans raised for the purpose shall be paid off out of revenue within five years from the date of the passing of the Act confirming this Order.

The SCHEDULES referred to in the foregoing Order. A.D. 1924.

FIRST SCHEDULE.

PART I.

RATES ON VESSELS USING THE HARBOUR.

Vessels (other than fishing vessels or boats engaged in white fishing):—

1. All vessels to or from any port or place in Great Britain or Ireland per registered ton - - -	£	s.	d.
	0	0	6
2. All vessels to or from any port or place not in Great Britain or Ireland per registered ton - - -	0	0	10

BERTHING.

Vessels under 30 tons register - - - - -	0	0	8
Do. 30 tons register and under 60 tons register -	0	1	3
Do. 60 do. 80 do. -	0	1	9
Do. 80 do. 120 do. -	0	2	3
Do. 120 do. 300 do. -	0	3	6
Do. 300 tons register and over - - - - -	0	4	6

Vessels including fishing vessels and boats entering the harbour for safety or windbound and not breaking bulk nor taking in goods:—

One penny per register ton if on a voyage to or from any port or place in Great Britain or Ireland; and

Twopence per register ton if on a voyage to or from any other port or place.

FISHING VESSELS.

Trawlers on entering harbour - - - - -	0	6	0
Drifters do. - - - - -	0	3	6
Motor boats (large) do. - - - - -	0	3	6
Sail boats do. - - - - -	0	2	6
Motor boats (small) do. - - - - -	0	2	0
Line boats do. - - - - -	0	1	6
Skiffs and small boats do. - - - - -	0	1	6

For any boat not paying composition dues remaining more than 24 hours in the harbour the above rates shall be payable for each 24 hours or part thereof after the first 24 hours.

A.D. 1924.

LAID UP DUES.				£	s.	d.
Drifters in dock	per week or part of a week	-	0	6	0	
Do. in harbour	do. do.	-	0	5	0	
Motor boats in dock	do. do.	-	0	5	0	
Do. in harbour	do. do.	-	0	4	0	
Sail boats in dock	do. do.	-	0	5	0	
Do. in harbour	do. do.	-	0	4	0	
Small motor boats in dock	do. do.	-	0	3	6	
Do. in harbour	do. do.	-	0	3	0	
Line boats in dock	do. do.	-	0	3	0	
Do. in harbour	do. do.	-	0	2	6	
For new boats and vessels fitting out and boats and vessels repairing per week or part of a week		-	0	10	0	

SEASON'S DUES.

1. *Vessels engaged in Herring Fishing only.*

Drifters 1st June to 31st August	-	-	-	-	2	0	0
Large motor boats do.	-	-	-	-	1	15	0
Sail boats do.	-	-	-	-	1	15	0

2. *Boats engaged in White Fishing.*

Large motor boats—1st June to 31st August	-	-	-	-	1	10	0
1st September to 30th November	-	-	-	-	1	10	0
1st December to last day of February	-	-	-	-	1	10	0
1st March to 31st May	-	-	-	-	1	10	0
Baldies per season as above	-	-	-	-	1	5	0
Small baldies do.	-	-	-	-	0	15	0
Skiffs do.	-	-	-	-	0	10	0

HARBOUR LIGHTS.

For every fishing vessel under 30 tons payable in advance per season	-	-	-	-	0	2	6
For every fishing vessel of 30 tons or above payable in advance per season	-	-	-	-	0	5	0
For boats and vessels under 24 tons (other than fishing vessels) each	-	-	-	-	0	0	6
For all other vessels entering the harbour per register ton	-	-	-	-	0	0	0 $\frac{1}{4}$

But rates for lights shall only be demanded and received when they have been provided to the satisfaction of the Board of Trade and so long thereafter as a light or lights are duly exhibited during the proper hours.

PART II.

A.D. 1924.

RATES ON GOODS SHIPPED TRANSHIPPED OR UNSHIPED IN
THE HARBOUR.

Articles of Export or Import.	Weight or Measure.	Rates.
		<i>s. d.</i>
Coals - - - - -	per ton	0 8
Coals bunker - - - - -	per ton	0 4
Fish (fresh) haddock cod ling and fish not enumerated - - - - -	per £1 value	0 4
Herrings imported fresh - - - - -	per £1 value	0 4
Do. cured and imported - - - - -	per barrel	0 3
Do. in barrels imported and exported	per barrel	0 3
Slag - - - - -	per ton	1 6

SECOND SCHEDULE.

RATES PRESCRIBED IN PART III. OF ORDER OF 1895 AND
REPEALED BY THIS ORDER.

Articles of Export or Import.	Weight or Measure.	Rates.
		<i>s. d.</i>
Coals - - - - -	per ton	0 6
Fish (fresh) haddock cod ling and fish not enumerated - - - - -	per cwt.	0 1
Herrings imported fresh - - - - -	per 37½ gallons	0 2½
Do. cured and exported - - - - -	per 26⅔ gallons	0 2
Do. in barrels imported and exported	per 26⅔ gallons	0 3

Printed by EYRE and SPOTTISWOODE, LTD.,
FOR
WILLIAM RICHARD CODLING, Esq., C.V.O., C.B.E., the King's Printer of
Acts of Parliament.

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